

Court No. - 3

Case :- WRIT - C No. - 24012 of 2021

Petitioner :- M/S M S Enterprises Through Chanda Singh
And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ram Janam Singh

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Heard learned counsel for the parties.

The respondents claim Rs.25,16,876/- from the petitioners against the electricity dues under the provisional assessment order dated 13.8.2021. The petitioners have already filed objection thereto on 21.8.2021 i.e. within time contemplated under the U.P. Electricity Supply Code, 2005.

In such facts, no useful purpose would be served in keeping the present petition pending or calling for a counter affidavit at this stage.

As the provisional demand may not be pressed till the objections are adjudicated, the writ petition is **disposed of** with the direction that respondent no.3 shall decide the petitioner's objection dated 21.8.2021 (Annexure No.9) as

expeditiously as possible preferably within a period of one month from today.

For a period of one month from today or till the disposal of petitioner's objection, whichever is earlier, no coercive measures be adopted against the petitioners.

Order Date :- 21.10.2021

M. Tariq